

25STCV26025 25STCV26025

County: los-angeles

Division: Civil Law and Motion

Department: 413

Hearing date: 2026-07-29

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Case Number: 25STCV26025 Hearing Date: July 29, 2026 Dept: 413

PROPOSED ORDER

July 29,

2026

Chris

Amendola v. Parquet by Dian et al.,

Case No. 25STCV26025

Plaintiff's

Motion for Summary Adjudication of Issues

The Court

has reviewed the filings provided for Plaintiff Chris Amendola ("Plaintiff")'s

Motion for Summary Adjudication (CRS #: 315080980464), filed April 01, 2026.

As filed,

there appears to be two issues that must be addressed prior to a hearing on this motion.

First, the

Motion for Summary Adjudication ("MSA") is directed to three affirmative defenses pleaded by defendant Parquet by Dian and Plaintiff's Second Cause of Action for recovery of compensation paid to an unlicensed contractor under Business and Professions Code section 7031(b). While Plaintiff asserts that the Second Cause of Action is against Parquet (MSA 2:9-12), the cause of action as pleaded is alleged against all defendants, including defendant Manuel Zavala ("Zavala"). As a defendant in this cause

of action, Zavala would have a right to oppose the motion. Zavala has not yet been served, and has not been dismissed from the action. While Zavala potentially remains, Plaintiff cannot completely dispose of the Second Cause of Action, and it would be premature to rule on the MSA.

Second, Plaintiff's

Separate Statement of Undisputed Facts does not adhere to the format required under California Rules of Court, Rule 3.1350(h). It did not include on left

side of the table (i.e., Plaintiff's material facts) Plaintiff's supporting

evidence; the supporting evidence was erroneously put on the right side of the table. Therefore, Parquet's response to the Separate

Statement included Plaintiff's only Plaintiff's proposed undisputed material facts, not Plaintiff's supporting evidence.

Plaintiff

is ordered to file by _____, 2026, a completed Separate Statement, which includes on the left side both Plaintiff's material facts and supporting evidence and on the right side Defendant's responses and supporting evidence, adhering to the format in Rules of Court, Rule 3.1350, so that the Court may effectively view the material facts and evidence of both parties.

Plaintiff's

Motion for Summary Adjudication is continued to _____ at 08:30 AM in Department 413.